

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

PETER BLAKE,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. DEON AYALA, Shield
No. 06180, Individually and in his Official Capacity, and
POLICE OFFICERS "JOHN DOE" #1-10, Individually and
in their Official Capacity (the name John Doe being
fictitious, as the true names are presently unknown),

Defendants.

-----X

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
June 23, 2017

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

DET. DEON AYALA, Shield No. 06180
Narcotics Borough Manhattan North
1 Police Plaza
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
PETER BLAKE,

Plaintiff,

VERIFIED COMPLAINT

-against-

Jury Trial Demanded

THE CITY OF NEW YORK, DET. DEON AYALA,
Shield No. 06180 (Tax Id. No. 938006), Individually and
in his Official Capacity, and POLICE OFFICERS "JOHN
DOE" #1-10, Individually and in their Official Capacity
(the name John Doe being fictitious, as the true names are
presently unknown),

BASIS FOR VENUE:

CPLR § 504(3)

Defendants.
-----X

Plaintiff PETER BLAKE, by his attorneys, COHEN & FITCH LLP, complaining of the
defendants, respectfully alleges as follows:

FACTS

1. Plaintiff PETER BLAKE is an African American male and has been at all relevant times a resident of Bronx County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, DET. DEON AYALA, Shield No. 06180 (Tax Id. No. 938006) and POLICE OFFICERS "JOHN DOE" #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about October 24, 2014, at approximately 6:43 p.m. in the County, City, and State of New York, Plaintiff PETER BLAKE was lawfully in the vicinity of 454 Saint Nicholas Avenue, New York, NY.

9. At the aforementioned time and place, NYPD officers accosted plaintiff, searched him, and then immediately placed him under arrest by handcuffing his arms tightly behind his back.

10. At no time on October 24, 2014 did defendants possess probable cause to arrest plaintiff.

11. At no time on October 24, 2014, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

12. Thereafter, plaintiff was placed in a police vehicle and transported to a nearby police precinct where he was fingerprinted, photographed, searched, detained in a holding cell, and charged with Attempted Tampering with Physical Evidence.

13. At no time on October 24, 2014, did plaintiff suppress, conceal, alter, destroy or tamper with any evidence of any kind, nor did he attempt to suppress, conceal, alter, destroy or tamper with any evidence of any kind, nor did he commit any of the aforementioned crimes and/or offenses, or behave unlawfully in any way.

14. In connection with plaintiff's arrest, defendant officers filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office. Thereafter, defendants repeatedly alleged false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendant AYALA falsely stated that he observed Mr. Blake rolling a substance into a small white paper and that when he approached Mr. Blake and identified himself as a police officer, Mr. Blake placed in the object into his mouth. In addition, defendant AYALA falsely claimed that he recognized the smell to be that of phencyclidine based on his training in drug identification and falsely stated that he was able to see phencyclidine in Mr. Blake's teeth, but was not able to recover anything from Mr. Blake's person.

15. As a result of his unlawful arrest, plaintiff spent approximately sixty (60) days in custody and upon information and belief made approximately sixteen (16) court appearances over the course of five (5) months.

16. Notwithstanding the perjurious and fraudulent conduct of defendants, all of the criminal charges against plaintiff were dismissed in their entirety on or about June 30, 2015.

17. As a result of the foregoing, plaintiff PETER BLAKE, sustained, inter alia, loss of liberty, physical injury, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FIRST CLAIM FOR RELIEF UNDER 42 U.S.C. § 1983
DEPRIVATION OF FEDERAL RIGHTS

18. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

19. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

20. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

21. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

22. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

23. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF UNDER 42 U.S.C. § 1983
FALSE ARREST

24. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

25. As a result of the aforesaid conduct by defendants, plaintiff was subjected to an illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

26. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF UNDER 42 U.S.C. § 1983
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

27. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

28. Defendants created false evidence against plaintiff.

29. Defendants forwarded false evidence and false information to prosecutors in the New York County District Attorney's office. Specifically, defendant AYALA falsely stated that he observed Mr. Blake rolling a substance into a small white paper and that when he approached Mr. Blake and identified himself as a police officer, Mr. Blake placed in the object into his mouth. In addition, defendant AYALA falsely claimed that he recognized the smell to be that of phencyclidine based on his training in drug identification and falsely stated that he was able to

see phencyclidine in Mr. Blake's teeth, but was not able to recover anything from Mr. Blake's person.

30. Defendants misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

31. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

32. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

33. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

34. Defendants misrepresented and falsified evidence before the New York County District Attorney.

35. Defendants did not make a complete and full statement of facts to the District Attorney.

36. Defendants withheld exculpatory evidence from the District Attorney.

37. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

38. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.

39. Defendants acted with malice in initiating criminal proceedings against plaintiff.

40. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

41. Defendants lacked probable cause to continue criminal proceedings against plaintiff.

42. Defendants acted with malice in continuing criminal proceedings against plaintiff.

43. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

44. Notwithstanding the perjurious and fraudulent conduct of defendants, the Attempted Tampering with Physical Evidence charge against plaintiff was dismissed in its entirety on or about June 30, 2015.

45. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
MUNICIPAL LIABILITY

46. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

47. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

48. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,

49. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

50. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

51. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

52. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

53. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

54. The acts complained of deprived the plaintiff of his right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. Not to have summary punishment imposed upon him; and
- d. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
June 23, 2017

BY: _____/S_____

GERALD COHEN
JOSHUA FITCH
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212)374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff PETER BLAKE in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
June 23, 2017

_____/S_____
Ilyssa Fuchs